

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

Visual Comfort & Co.
v.
COSCO Shipping Lines Co., Ltd.

RESPONDENT'S STATUS REPORT

Respondent COSCO Shipping Lines Co., Ltd (“Respondent” or “COSCO”), through its undersigned counsel, hereby submits Respondent’s Status Report in response to the Presiding Officer’s Orders of February 10, 2025 and February 18, 2025 (“Orders”).

A table responsive to the Presiding Officer’s requirement that Respondent describe the additional documents identified and produced pursuant to the Orders is included as **Exhibit A**. Also attached to this Status Report are the declarations of Yuriy Rabukhin (COSCO Shipping Lines (North America), Inc.)(**Exhibit B**) and Josh Williams (Everest Discovery)(**Exhibit C**).

On March 18, 2025, COSCO produced to Complainant a total of 893 records (COSCO’s Seventh Production) resulting from the collections and searches described in the attached Rabukhin and Namey declarations. Many of the documents were produced because they were responsive to the searches for container number (as requested by Visual Comfort & Co. (“Complainant” or “VCC”) and as required by the Orders) but relate to shipments of uninvolved third parties and were not VCC’s shipments nor those of RIM Logistics, Ltd. (“RIM”). This occurred because, as previously explained, containers (and hence their numbers) are used multiple times, and with a variety of shipper customers.

On March 26, 2025, COSCO produced another set of documents (COSCO's Eighth Production) which contained 598 records. As with the March 18, 2025 production, many of the documents were produced because they were required by the Orders, even though they relate to shipments of third parties, not to those of VCC or RIM.

DATED: March 26, 2025

Respectfully submitted,

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***Attorneys for Respondent,
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I hereby certify that on this 26th day of March, 2025 a true and correct copy of the foregoing Respondent's **Status Report and Exhibits** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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